

Mauritius Co-Ownership & Syndic Management — Q&A (v3.0)

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Short disclaimer: Mauritian property and co-ownership legislation changes periodically. This guide reflects publicly available sources at the time of writing and is for general orientation only — it is not legal advice. See the full disclaimer at the end before publishing or relying on any answer.

A. Co-Ownership Fundamentals

Q: What is co-ownership (copropriété) under Mauritian law? A property regime where a building or plot is divided into privately owned units and common parts (hallways, stairwells, access roads) shared by all owners. It is governed by the co-ownership Section of the **Code Civil Mauricien**, as substantially rewritten by the **Code Civil Mauricien (Amendment) Act 2018, Act No. 15 of 2018** (Articles 664 et seq.).

Q: What four parties make up a co-ownership? The **syndicate** (the legal entity formed automatically by all owners together, which owns the property), the **syndic** (its appointed executive/representative), the **syndic committee** (oversees the syndic), and the **co-owners** themselves.

Q: Who owns the common parts? The syndicate, not any individual owner.

Q: My title deed doesn't say whether an area is private or common — what applies? It defaults to being treated as a common part.

B. Governance & General Assemblies

Q: How does a syndicate make decisions? By resolution, voted on at a general assembly of co-owners, under the general-assembly provisions of Articles 664 et seq. of the Code Civil Mauricien.

Q: Is an annual general assembly required? Yes — at minimum once a year, to approve the operating budget.

Q: Can a special assembly be called outside the annual one? Yes, co-owners can request one at any time, subject to conditions in the co-ownership rules.

Q: How do I get a general assembly convened? Check the co-ownership rules first. Otherwise, owners holding at least a quarter of total votes (or a lower threshold if the rules set one) can request the syndic call one, or ask the syndic committee's president to forward the request.

Q: Can co-ownership rules themselves be amended? Yes, by vote at a general assembly, with majority requirements depending on the nature of the change.

C. The Syndic & Accountability

Q: What does the syndic actually do? Implements the syndicate's decisions, represents it, and keeps its records, accounts, and contracts.

Q: How is a syndic appointed or removed? By resolution at a general assembly — owners can vote in a new syndic or remove one who isn't performing.

Q: Can a syndic be held liable for failing their duties? Yes — the syndicate or owners can pursue legal action for damages.

Q: Is the syndic always a paid professional? No. Co-owners can appoint a professional management company or one of their own as a volunteer syndic — a volunteer is typically reimbursed for expenses rather than paid a management fee.

Q: What does the syndic committee (conseil syndical) do? Oversees and controls the syndic's management and reports back to the syndicate. Members are co-owners elected at the general assembly for renewable terms of up to three years. Every co-ownership has one unless the assembly votes otherwise by double majority.

D. Financial Contributions, Quote-Parts & Calls for Funds

Q: What exactly is a "quote-part" (tantième)? Each unit's proportional share of the co-ownership's common parts — fixed when the building is divided into lots and usually expressed as a fraction or per-mille of the whole (e.g., 52/1000). It is recorded in the building's descriptive division statement attached to the règlement de copropriété.

Q: What does my quote-part actually control? Three things: your share of common-area charges, your voting weight at general assemblies, and — where relevant — your share of proceeds if common property is sold.

Q: Can my quote-part change later? Only through a formal amendment of the règlement de copropriété (for example, if you acquire an adjoining lot or new lots are created) — not unilaterally.

Q: How are routine running costs divided among owners? Proportional to each owner's quote-part — larger or higher-value units carry a larger share of the approved annual budget.

Q: Who collects the levies? The syndic, who keeps an account per owner showing any arrears and can take legal action to recover unpaid amounts.

Q: Can I refuse to pay if I think levies are too high? No. Once a budget is approved at assembly with supporting documentation (invoices, contracts), payment is mandatory. The correct route is proposing cost changes at the next assembly.

Q: Who pays for repairs? The owner, if the issue is inside their private unit; the syndicate, if it's in the common parts.

Q: Are co-owners ever asked to pay beyond the regular annual budget? Yes — for major or unbudgeted work (a lift replacement, a full building repainting, resurfacing the parking area), the general assembly can vote a separate, exceptional **call for funds**, with its own payment schedule, apportioned by quote-part — sometimes using a different special apportionment key if the work only benefits certain lots or a particular block.

Q: Who decides whether something is funded this way rather than from the standing budget? The general assembly, at the point it votes the work. Major or unbudgeted items are typically financed through a dedicated call for funds; routine, predictable maintenance is covered by the regular annual budget.

Q: If I sell my unit while a call for funds is outstanding, who pays? This typically turns on whether the amount had already fallen due before completion. In comparable co-ownership systems, the owner who held the unit at the date the call became payable is liable, with the notary settling this at completion — the precise Mauritian timing rule should be confirmed with the notary handling the sale.

Q: Can a call for funds be challenged? Generally only by challenging the underlying assembly resolution that approved the works (e.g., on procedural grounds) — not the call for funds itself once the works have been validly approved.

E. Parking — Common vs. Private Use

Q: Is a parking bay automatically part of my private unit? Not necessarily. A bay can be a private lot in its own right (with its own quote-part) or form part of the common areas — which one applies is fixed in the building's *règlement de copropriété*, not assumed by default.

Q: If my bay is a private lot, what does that mean? You hold exclusive use of it, it carries its own quote-part share of the charges, and — subject to the *règlement* — you can generally sell or lease it separately from your unit.

Q: If parking is a common area, can I still have "my own" bay? Often yes, through a right of exclusive enjoyment attached to your unit: you alone may use that bay, but you don't own it outright and it carries no separate quote-part.

Q: Who decides how parking bays are allocated or reorganized? The general assembly, by resolution, for anything affecting the common-area layout (re-marking bays, reserving accessible bays, adding EV chargers, resurfacing). Work confined entirely to a private bay is the owner's call, but still can't alter the common structure without assembly approval.

Q: Can the syndic restrict what a bay is used for? Yes — *règlements* typically limit bays to vehicle parking only (not storage or workshop use), and the syndic can enforce that.

Q: Can visitor parking be billed separately from co-ownership charges? Yes — many buildings treat visitor and short-stay parking as an independently priced, separately billed service rather than folding it into co-ownership levies.

F. Access — Common Parts, Private Units & Visitors

Q: Can I inspect the syndic's financial records? Yes — co-owners are entitled to request and review the documentation (invoices, contracts, accounts) behind any approved budget or charge.

Q: Can the syndic or a contractor enter my private unit without my consent? Generally only for works affecting the common parts, or in a genuine emergency — and the specific notice and access conditions are set out in each building's own règlement de copropriété rather than a single blanket rule. Check that document for the exact terms that apply to a given building.

Q: Do tenants and visitors have the same access rights to common parts as owners? Their access is generally derived from the owner's rights and governed by house rules set by the syndic or assembly, not an independent legal right of their own.

Q: If remedial works are needed, who has to act? The location of the issue decides it: inside a private unit, the owner arranges and pays; in common parts, the syndicate does.

G. Rental — Short-Term vs. Long-Term

Q: Can I rent out my unit? Generally yes — co-ownership doesn't prohibit renting, but a building's règlement de copropriété can impose conditions (for example, requiring notice to the syndic or restricting commercial use).

Q: Do I need a licence to list my unit on Airbnb/Booking in Mauritius? Yes. Under the **Tourism Authority Act**, any accommodation made available for rent for a period of less than 12 months must hold a valid **Tourist Enterprise Licence** from the Mauritius Tourism Authority, in addition to a **Business Registration Number** under the Business Registration Act — independently of whatever the co-ownership rules say.

Q: Are there extra formalities specifically because my tenant is a foreigner? It depends on the type of rental, not the tenant's nationality as such. If it's short-term/tourist-type accommodation, the Tourism Authority Enterprise Licence and Business Registration requirements apply regardless of who the guest is. For an ordinary long-term residential lease, renting to a foreign tenant doesn't itself trigger syndic or tourism-licensing formalities — though the tenant's own right to reside in Mauritius (e.g., a valid occupation or residence permit) remains the tenant's responsibility, not the landlord's.

Q: What counts as "short-term" versus a regular lease? In practice, short-term/seasonal rental covers stays from a single night up to several months; a standard long-term lease

typically runs longer and falls outside the Tourism Authority licensing requirement. Registration and tax treatment differ between the two.

Q: How is short-term rental income taxed? It is generally taxable income that must be declared to the **Mauritius Revenue Authority**, with specific withholding rules that can apply to non-resident owners. Exact rates and thresholds should be confirmed with the MRA at the time, as these are adjusted periodically.

Q: Can the syndic or general assembly restrict short-term rentals within the building? A *règlement de copropriété* can impose conditions on rental activity generally (notice requirements, restrictions on commercial or tourism use). Whether — and how far — a Mauritian co-ownership can outright *ban* short-term rentals is not settled by a single clear-cut provision identified in this research; this point should be confirmed against the specific building's *règlement* and current case law before being stated as a firm rule.

Q: Does a long-term lease need to be registered anywhere? Leases above certain duration or value thresholds typically trigger registration formalities in Mauritius. The applicable threshold should be confirmed against the current Registration Duty Act requirements with a notary, as these figures are adjusted from time to time.

H. Selling Your Unit

Q: Do I need anything from the syndic before I can sell my unit? In practice, yes — the notary handling the sale will typically require confirmation from the syndic that no co-ownership charges are outstanding on the unit (sometimes referred to informally as a clearance or no-objection confirmation), since unpaid charges can carry a privilege (*lien*) against the property that follows it through a sale.

Q: What happens if there are unpaid charges at the time of sale? Outstanding amounts are commonly settled out of the sale proceeds at the notary's instance before the transaction completes, rather than being left for the buyer to inherit.

Q: Is that the same as EDB clearance for non-citizen-scheme properties? No — they're separate. If the unit was originally acquired by a non-citizen under an EDB-approved scheme (IRS/RES/PDS/SCS/IHS, etc.), the seller separately needs a **Non-Objection Certificate from the EDB** — obtained by submitting a Notice of Sale to the EDB — before disposing of the property, in addition to whatever clearance the syndic gives on the co-ownership side.

Q: Does the buyer need anything specific too? If the buyer is a non-citizen, they need their own EDB/PMO approval to acquire the property in the first place. Citizen buyers don't face that requirement but should still confirm the unit's quote-part, any pending calls for funds, and the syndic's clearance before completing.

I. Legal Basis — Code Civil Mauricien Provisions

Q: What is the core legislation governing co-ownership? The **Code Civil Mauricien (Amendment) Act 2018 (Act No. 15 of 2018)**, which inserted a dedicated co-ownership Section beginning at **Article 664** and running through detailed sub-articles (e.g., 664-1 through at least 664-117).

Q: Can the syndicate itself hold or acquire property (e.g., a caretaker's unit)? Yes — **Article 664-19** allows the syndicate to be granted, or to acquire, one or more lots that enter its own patrimony, which it may also dispose of; it does not, however, get a vote at general assembly in respect of those lots.

Q: Does the law recognize "secondary syndicates" for larger or phased developments? Yes — **Article 664-95** gives a secondary syndicate (covering one section of a larger complex, or an estate-wide syndical/association structure) its own legal personality, with representation on the main syndicate's council. This article is also the one commonly cited in Mauritian estate "cahier des charges" documents for gated developments and lotissements.

Q: Can co-ownership disputes go to arbitration instead of court? Yes — provisions including **Article 664-65** (defining the co-ownerships to which the Section applies) and **Article 664-117** (governing notices and formal demands) support submitting qualifying disputes to arbitration rather than the ordinary courts.

Q: Are the specific articles on budgets, syndic appointment, charge apportionment, and calls for funds individually numbered too? Yes — they sit within the same Section (Articles 664 et seq.) of the Act, but this guide has not pinned every individual rule to its precise sub-article number. Before publishing this content externally, each general statement above should be matched to its exact article reference from the official Act text.

J. Non-Citizen / Foreign Ownership

Q: Can a non-citizen own a unit in a Mauritian co-ownership? Yes, but generally only through an approved pathway under the **Non-Citizens (Property Restriction) Act**, together with Economic Development Board (EDB)-approved schemes.

Q: What are the main approved schemes for non-citizens? Integrated Resort Scheme (IRS), Real Estate Scheme (RES), Property Development Scheme (PDS), Smart City Scheme (SCS), and Invest Hotel Scheme (IHS) — plus qualifying apartments in buildings of at least ground + 2 floors (G+2).

Q: Can a non-citizen buy a residential apartment outside those named schemes? Yes — under a separate provision of the Act, a non-citizen may acquire one qualifying residential property at a minimum value (in the order of USD 500,000), subject to EDB conditions and limited to natural persons.

Q: What happens if a non-citizen acquires property without approval? The acquisition is void. The property can be taken into the possession of a Curator, who must arrange its sale; proceeds, after charges, are returned to the non-citizen.

Q: Can a non-citizen sell or transfer their property freely afterward? No. Since the **Non-Citizens (Property Restriction) (Amendment) Act 2021**, disposing of property acquired under these schemes also requires prior authorisation from the Prime Minister's Office, via EDB (see also Section H above).

Q: Does leasing also require approval? Yes for longer-term arrangements — leasing immovable property for more than 20 years by a non-citizen requires authorisation; some shorter business/industrial leases are treated differently under the Act.

Q: Are non-citizen acquisitions subject to additional duties or taxes? Yes — land duties and registration taxes apply, generally calculated on the property's current market value. Exact rates should be confirmed with a notary or the EDB at the time of transaction.

K. Related Compliance

Q: Does data protection law apply to syndic/property records? Yes — personal data held on co-owners and tenants (contact details, financial records, etc.) falls under the **Data Protection Act 2017**.

Disclaimer

This guide reflects general principles drawn from publicly available legal and regulatory sources at the time of writing, including the Code Civil Mauricien (Amendment) Act 2018, the Non-Citizens (Property Restriction) Act and its amendments, Economic Development Board scheme guidelines, Tourism Authority Act materials, and the Data Protection Act 2017, alongside secondary commentary from Mauritian legal and real-estate sources, and general co-ownership principles (calls for funds, parking classification, access) drawn from French-derived copropriété commentary where Mauritius-specific confirmation was not available.

Mauritian legislation in this area is amended periodically — including article numbering, scheme thresholds, licensing requirements, tax rates, and registration duties. Nothing in this guide should be treated as a definitive or current statement of the law. Before relying on, publishing, or acting on any answer above — particularly those concerning non-citizen acquisition, short-term rental licensing, charge apportionment, calls for funds, or clearance on sale — readers should:

1. Review the current, official text of the relevant legislation (Code Civil Mauricien, Non-Citizens (Property Restriction) Act, Tourism Authority Act, Business Registration Act, Data Protection Act, and any amendments to each); and
2. Seek advice from a qualified Mauritian attorney or notary for their specific situation.

This document does not constitute legal advice and does not create an advisor-client relationship between Blocwise and any reader.

Sources

- Dentons, *"A guide to co-ownership in Mauritius"* (April 2022)
- Code Civil Mauricien (Amendment) Act 2018, Act No. 15 of 2018 — Mauritius National Assembly / Laws of Mauritius portal
- Mauritian co-ownership "cahier des charges" / association syndicale documents referencing Article 664-95 (illustrative estate-level usage)
- Economic Development Board (EDB) Mauritius — Non-Citizens (Property Restriction) Act guidelines, IRS/RES/PDS/SCS/IHS scheme materials, residential/apartment acquisition guidelines, and Non-Objection Certificate / Notice of Sale practice for scheme properties
- Mauritius Tourism Authority — Tourist Enterprise Licence / Tourist Accommodation Certificate communiqués
- General co-ownership principles on parking, access, calls for funds, and short-term rental, drawn from French-derived copropriété commentary, applied here with explicit caveats where Mauritius-specific confirmation was not available
- Mauritius Data Protection Act 2017